



Code: IIBGA-AR
Revised/Reviewed: 7/21/21

Electronic Communications System

Definitions

1. “Technology protection measure,” as defined by the Children’s Internet Protection Act (CIPA), means a specific technology that blocks or filters Internet access to visual depictions that are:
 - a. “Obscene,” has the meaning given such term in Section 1460 of Title 18, United States Code;
 - b. “Child pornography,” has the meaning given such term in Section 2256 of Title 18, United States Code; or
 - c. Harmful to minors.
2. “Harmful to minors,” as defined by CIPA, means any picture, image, graphic image file or other visual depiction that:
 - a. Taken as a whole and with respect to minors, appeals to a prurient interest in nudity, sex or excretion;
 - b. Depicts, describes or represents, in a patently offensive way with respect to what is suitable for minors, an actual or simulated sexual act or sexual contact, actual or simulated normal or perverted sexual acts, or a lewd exhibition of the genitals; and
 - c. Taken as a whole, lacks serious literary, artistic, political or scientific value to minors.
3. “Sexual act and sexual contact,” as defined by CIPA, have the meanings given such terms in Section 2246 of Title 18, United States Code.
4. “Minor,” as defined by CIPA, means an individual who has not attained the age of 17. For the purposes of Board policy and this administrative regulation, minor will include all students enrolled in HCCS.
5. “Inappropriate matter,” as defined by HCCS, means material that is inconsistent with general public education purposes and HCCS’s vision, mission and goals, as determined by HCCS.
6. “Public charter school proprietary information” is defined by HCCS as any information created, produced or collected by school staff for the business or education purposes of the school including but not limited to student information, staff information, parent or patron information, curriculum, forms and like items used to conduct the school’s business.
7. “School software” is defined by HCCS as any commercial or staff developed software acquired using school resources.

General Public Charter School Responsibilities

HCCS will:

1. Designate staff as necessary to ensure coordination and maintenance of HCCS's electronic communications system which includes all public charter school computers, e-mail and Internet access;
2. Provide staff training in the appropriate use of HCCS's electronic communications system including copies of public charter school policy and administrative regulations. Staff will provide similar training to authorized system users;
3. Allow staff use of personal electronic devices to access the school's electronic communications system when it is consistent with school board policies and administrative regulations (See Staff User Agreement);
4. Provide a system for authorizing staff use of personal electronic devices to download or access public charter school proprietary information that ensures the protections of said information in accordance with board policy. The school will provide a system for obtaining prior written agreement from staff for the recovery of public charter school proprietary information downloaded to staff personal electronic devices as necessary to accomplish public charter school purposes, obligations or duties, and when the use on the personal electronic device is no longer authorized, to ensure verification that information downloaded has been properly removed from the personal electronic device; (See Staff User Agreement)
5. Cooperate fully with local, state or federal officials in any investigation relating to misuse of HCCS's electronic communications system;
6. Use only properly licensed software, audio or video media purchased by HCCS or approved for use by the school. The school will comply with the requirements of law regarding the use, reproduction and distribution of copyrighted works and with applicable provisions of use or license agreements;
7. Install and use server virus detection and removal software;
8. Provide technology protection measures that protect against Internet access by both adults and minors to visual depictions that are obscene, child pornography, or with respect to the use of computers by minors, harmful to minors. A supervisor or other individual authorized by the administrator may disable the technology protection measures to enable access for bona fide research or other lawful purposes, as deemed appropriate;
9. Prohibit access by minors to inappropriate matter on the Internet and World Wide Web;
10. Provide staff supervision to monitor the online activities of students to prevent unauthorized access, including "hacking" and other unlawful activities online, and ensure the safety and security of minors when authorized to use e-mail, social media, chat rooms, applications and other forms of direct electronic communication;
11. Provide student education about appropriate online behavior, including cyberbullying awareness and response, and how to interact with other individuals on social networking and social media websites, applications and in chat rooms;

12. Determine which users and sites, accessible as part of HCCS's electronic communications system, are most applicable to the curricular needs of HCCS and may restrict user access accordingly;
13. Determine which users will be provided access to HCCS's electronic communications system;
14. Notify appropriate system users that:
 - a. HCCS retains ownership and control of its computers, hardware, software and data at all times. All communications and stored information transmitted, received or contained in HCCS's information system are HCCS's property and are to be used for authorized purposes only. Use of public charter school equipment or software for unauthorized purposes is strictly prohibited. To maintain system integrity, monitor network etiquette and ensure that those authorized to use HCCS's system are in compliance with Board policy, administrative regulations and law, the school administrators may routinely review user files and communications;
 - b. Files and other information, including e-mail, sent or received, generated or stored on public charter school servers are not private and may be subject to monitoring. By using HCCS's system, individuals consent to have that use monitored by authorized public charter school personnel. HCCS reserves the right to access and disclose, as appropriate, all information and data contained on public charter school computers and public charter school-owned e-mail system;
 - c. HCCS may establish a retention schedule for the removal of e-mail;
 - d. E-mail sent or received by a Board member or employee in connection with the transaction of public business may be a public record and subject to state archivist rules for retention and destruction;
 - e. Information and data entered or stored on HCCS's computers and e-mail system may be subject to disclosure if a public records request is made or a lawsuit is filed against HCCS. "Deleted" or "purged" data from public charter school computers or e-mail system may be retrieved for later public records disclosure or disciplinary purposes, as deemed necessary by HCCS;
 - f. Passwords used on HCCS's electronic communications system will be changed at 180-day (or six months) intervals;
 - g. Transmission of any communications or materials related to activities prohibited by ORS 260.432 is not allowed.
15. Ensure all student, staff and nonschool system users complete and sign an agreement to abide by HCCS's electronic communications system policy and administrative regulations. All such agreements will be maintained on file in the school office;
16. Notify users of known copyright infringing activities and deny access to or remove the material.

Electronic Communications System Access

1. Access to HCCS's electronic communications system is authorized to:

Board members, public charter school employees, and students in grades 3-8, with parent approval and when under the direct supervision of staff, and public charter school volunteers, public charter school contractors or other members of the public as authorized by the system coordinator or public charter school administrators consistent with HCCS's policy governing use of public charter school equipment and materials.

2. Students may be permitted to use HCCS's electronic communications system, when consistent with board policy and administrative regulations, for school and instructional related activities. Personal use of school-owned computers or devices including Internet and e-mail access is permitted when consistent with board policy and administrative regulations and when during the school day.

Staff and Board members may be permitted to use HCCS's electronic communications system to conduct business related to the management or instructional needs of the school or to conduct research related to education and when in compliance with Board policy and administrative regulations. Personal use of HCCS's system or school-owned computers or devices including Internet and e-mail access by school staff may be permitted when consistent with Oregon ethics laws, Board policy and administrative regulations[, when used on school property. Personal use of HCCS's system or school-owned computers or devices by Board members is prohibited.

Volunteers may be permitted to use HCCS's electronic communications system for personal use when consistent with Board policy, general use prohibitions and guidelines/etiquette and other applicable provisions of this administrative regulation.

General Use Prohibitions and Guidelines/Etiquette

Operation of HCCS's electronic communications system relies upon the proper conduct and appropriate use of system users. Students, staff and others granted system access are responsible for adhering to prohibitions and guidelines which require legal, ethical and efficient use of HCCS's system.

1. Attempts to upload, download, use, reproduce or distribute information, data, software or file share music, videos or other materials on HCCS's system in violation of copyright law or applicable provisions of use or license agreements;
2. Attempts to degrade, disrupt or vandalize HCCS's equipment, software, materials or data or those of any other user of HCCS's system or any of the agencies or other networks connected to HCCS's system;
3. Attempts to send, intentionally access or download any text file or picture or engage in any communication that includes, but not limited to, material which may be interpreted as:
 - a. Harmful to minors;
 - b. Obscene or child pornography as defined by law or indecent, vulgar, profane or lewd as determined by HCCS;
 - c. A product or service not permitted to minors by law;
 - d. Harassment, intimidation, bullying, menacing, threatening, or a bias incident;

- e. Constitutes insulting or fighting words, the very expression of which injures or harasses others, or which includes a symbol of hate;
 - f. A likelihood that, either because of its content or the manner of distribution, it will cause a material or substantial disruption of the proper and orderly operation of the school or school activity;
 - g. Defamatory, libelous, reckless or maliciously false, potentially giving rise to civil liability, constituting or promoting discrimination, a criminal offense or otherwise violates any law, rule, regulation, Board policy and/or administrative regulation.
- 4. Attempts to gain unauthorized access to any service via HCCS's system which has a cost involved or attempts to incur other types of costs without specific approval. The user accessing such services will be responsible for these costs;
 - 5. Attempts to post or publish personal student contact information unless authorized by the administrator/principal or designee and consistent with applicable Board policies pertaining to student directory information and personally identifiable information. Personal student contact information may include photograph, age, home, school, work or e-mail addresses or phone numbers or other unauthorized disclosure, use and dissemination of personal information regarding students;
 - 6. Attempts to arrange student meetings with anyone on HCCS's electronic communications system, unless authorized by the administrator/principal or designee or when consistent with school or educational related activities and with prior parent approval when necessary;
 - 7. Attempts to represent self on behalf of the school through use of HCCS's name in external communication forums, e.g., social media, chat rooms, without prior public charter school authorization;
 - 8. Attempts to use another individual's account name or password, failure to provide HCCS with individual passwords or to access restricted information, resources or networks to which the user has not been granted access.

9. Guidelines/Etiquette

System users will:

- a. Adhere to the same standards for communicating online that are expected in the classroom and consistent with Board policy and administrative regulations;
- b. Respect other people's time and cyberspace. Use real-time conference features such as video/talk/chat/Internet relay chat only as approved by the supervising teacher or system coordinator;
- c. Respect the privacy of others. Do not read the mail or files of others without their permission;
 - (1) Remember, there is no expectation of privacy when using e-mail. Others may read or access mail.
- d. Protect password confidentiality. Passwords are not to be shared with others. Using another user's account or password or allowing such access by another may be permitted with supervising teacher or system coordinator approval only;
- e. Communicate only with such users and/or sites as may be authorized by HCCS;

- f. Report violations of HCCS's policy and administrative regulation or security problems to the supervising teacher, system coordinator or administrator, as appropriate.

Complaints

HCCS's established complaint procedure in Board policy KL - Public Complaints and accompanying administrative regulation may be used to process complaints or concerns about violations of policy and administrative regulations.

Violations/Consequences

1. Students
 - a. Students who violate general system user prohibitions shall be subject to discipline up to and including expulsion and/or revocation of access to HCCS electronic communications system access up to and including permanent loss of privileges.
 - b. Violations of law may be reported to law enforcement officials and may result in criminal or civil sanctions.
 - c. Disciplinary action may be appealed by parents, students and/or a representative in accordance with established public charter school procedures.
2. Staff
 - a. Staff who violate general system user prohibitions shall be subject to discipline up to and including dismissal in accordance with Board policy, collective bargaining agreements and applicable provisions of law.
 - b. Violations of law may be reported to law enforcement officials and may result in criminal or civil sanctions.
 - c. Violations of applicable Teacher Standards and Practices Commission (TSPC), Standards for Competent and Ethical Performance of Oregon Educators will be reported to TSPC as provided by Oregon Administrative Rules (OAR) 584-020-0041.
 - d. Violations of ORS 244.040 may be reported to Oregon Government Ethics Commission (OGECE).
3. Others
 - a. Other guest users who violate general electronic communications system user prohibitions shall be subject to suspension of system access up to and including permanent revocation of privileges.
 - b. Violations of law may be reported to law enforcement officials or other agencies, as appropriate, and may result in criminal or civil sanctions.

Information Content/Third Party Supplied Information

1. System users and parents of student system users are advised that use of HCCS's electronic communications system may provide access to materials that may be considered objectionable and inconsistent with HCCS's vision, mission and goals. Parents should be aware of the existence of such materials and monitor their student's home usage of HCCS's electronic communications system accordingly.
2. Opinions, advice, services and all other information expressed by system users, information providers, service providers or other third-party individuals are those of the providers and not HCCS.
3. Users of the electronic communications system may, with system coordinator approval, order services or merchandise from other vendors that may be accessed through HCCS's electronic communications system. These vendors are not affiliated with HCCS. All matters concerning merchandise and services ordered including, but not limited to, purchase terms, payment terms, warranties, guarantees and delivery are solely between the vendor and the electronic communications system user. HCCS makes no warranties or representation whatsoever with regard to any goods or services provided by the vendor. Public charter school staff and administration shall not be a party to any such transaction or be liable for any costs or damages arising out of, either directly or indirectly, the actions or inactions of vendors.
4. HCCS does not warrant that the functions or services performed by, or that the information or software contained on, the electronic communications system will meet the system user's requirements, or that the electronic communications system will be uninterrupted or error-free, or that defects will be corrected. HCCS's electronic communications system is provided on an "as is, as available" basis. HCCS does not make any warranties, whether express or implied including, without limitation, those of merchantability and fitness for a particular purpose with respect to any services provided by the electronic communications system and any information or software contained therein.

Sample Parent Letter

Dear Parents:

Your student needs your permission to use HCCS's electronic communications system. Your student will be able to communicate with other schools, colleges, organizations and individuals around the world through the Internet and other electronic information systems/networks.

With this educational opportunity also comes responsibility. Inappropriate system use may result in discipline, up to and including expulsion from school, suspension or revocation of your student's access to HCCS's electronic communications system, and/or referral to law enforcement officials.

Although HCCS is committed to practices that ensure the safety and welfare of system users, including the use of technology protection measures such as Internet filtering, please be aware that there may still be material or communications on the Internet that public charter school staff, parents and students may find objectionable. While HCCS neither encourages nor condones access to such material, it is not possible for us to eliminate that access completely.

Attached to this letter is an agreement for your student and you to read and sign stating agreement to follow HCCS's electronic communications system policy and administrative regulation. The school's policy IIBGA – Electronic Communications System and administrative regulation are accessible from the school's website or upon request and include provisions on, but are not limited to, student use under General Use Prohibitions and Guidelines/Etiquette and student-related rules under Violations and Consequences.

Please review HCCS's electronic communications policy and administrative regulation, and the provisions therein, carefully with your student and return the attached agreement form to the school office indicating your permission for your student to use HCCS's electronic communications system.

Sincerely,

System Coordinator/Administrator

Student Agreement for an Electronic Communications System Account

Student agreement must be renewed each academic year.

Student Section

Student Name _____ Grade _____

School _____

I have received notice of, read and agree to abide by the provisions adopted and included in the school's electronic communications system policy and administrative regulation and the HCCS Technology Check-Out Policy. I understand that violation of these provisions may result in discipline, up to and including expulsion from school, and/or suspension or revocation of system and technology access and related privileges, and/or referral to law enforcement officials.

Student Signature _____ Date _____

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Parent

I have received notice of and read the school's electronic communications system policy and administrative regulation and the HCCS Technology Check-Out Policy. I give my permission to HCCS to issue an account and technology for my student and certify that the information contained in this form is correct. I will monitor my student's use of the system and technology and the access to the Internet and will accept responsibility for supervision in that regard if and when my student's use is not in a school setting. In consideration for the privilege of using the school's electronic communications system and in consideration for having access to the public networks, I hereby release the school, its operators and any institutions with which they are affiliated from any and all claims and damages of any nature arising from my, or my student's use, or inability to use, the system including, without limitation, the type of damages identified in the school's policy and administrative regulation.

Signature of Parent _____ Date _____

Email Address _____

Home Phone Number _____ Cell Number _____

Email Address _____

HCCS Technology Check-Out Policy

Device Ownership

HCCS retains sole right of ownership of the device. The devices are loaned to the faculty, staff, and students for educational purposes only for a one-year period, renewable each year.

Returning Devices

HCCS will collect and inspect devices and accessories when needed. Faculty, staff, and students who leave HCCS will be required to return their device and accessories. Failure to do so will result in the responsible party being billed for the full replacement cost.

Device Repair

If your device is broken or not working properly submit an IT request [here](#). If a loaner device is warranted, one will be issued until their device can be repaired or replaced.

General Care and Precautions

- Keep your device away from food and drink.
- Insert cords, cables, and removable storage devices carefully.
- Do not force connections.
- If the device has a screen, close the screen when carrying it.
- If using a Chromebook, close or shut down your Chromebook when not in use to conserve battery life.
- Use care when placing your device in a bag or locker -- protect the screen.
- Do not expose your device to extreme temperatures or direct sunlight for extended periods of time.
- Never leave the device in an unsecure location.
- Do not remove or attempt to alter the serial number or identification tags.
- Do not try to remove the keys, screen cover or plastic case.

Screen Care

- Rough treatment may damage your device screen; it is particularly sensitive to damage from excessive pressure.
- Do not place anything on the device that could put pressure on the screen.
- Be cautious when placing the device in your backpack.
- Do not poke the screen with any object not intended to be used with a touchscreen.
- Do not place anything on the keyboard before closing the lid (e.g. pens, pencils, or notebooks).
- Clean the screen with a soft, dry, anti-static, microfiber cloth or pre-moistened eyeglass cloth.
- Do NOT use window cleaner or water to clean your device.

Working Offline

Most devices and services are intended for use while connected to the internet. For Chromebooks, what you can do will be limited if it is not connected to the internet. To work offline, you need access to Apps and your files.

Internet Use at Home and Elsewhere

You can connect your device to wireless networks when you are not at school. HCCS I.T. cannot offer technical support for this due to the large variety of possible connections.

Sound

Keep the sound on your device muted except when needed. You can use headphones with permission from your parent AND teacher(s). If your school supplies you with headphones, you are responsible for their care and replacement if they are lost.

Printing

At School: Faculty and staff will be able to print from their device wirelessly. For students, printing directly from your device at school is not supported. When needed, teachers will provide you with methods to print your documents through another computer.

At Home: Chromebooks and iPads do not have a physical printer connection. It may be possible to print using wireless, depending on the capabilities of your home network and printer. Generally, the Google Cloud Print service will work for Chromebooks if you have a wireless network at home.

Managing Files and Saving Work

You are encouraged to save documents to your Google Drive or to an external memory device such as an SD card or USB flash drive. Saving to Google Drive will make the file accessible from any computer with internet access.

Software On Chromebooks

HCCS Chromebooks are supplied with the latest build of Google Chrome Operating System (OS), and other applications. The Chrome OS will automatically install updates when the computer is shutdown and restarted.

Chromebook software apps are delivered via the Chrome Web Store or the Google Play

Store and controlled by HCCS. These are web-based applications that do not require installation space on a hard drive. Some applications, such as Google Drive, are available for offline use. Do not delete or modify software on the Chromebook.

Schools may add software applications for use in a particular course. Schools may also remove applications when no longer needed.

Personalizing Your Device

Please do not draw, write, or put stickers, paint, or tape on your device. Keep it clean for the next person who will receive it.

Network Connectivity

The HCCS network might not be up and running 100% of the time. In the case that the network is down, HCCS will not be responsible for lost or missing data.

Inspection

You may be selected at random to provide your device for inspection. The purpose for inspection will be to check for proper care and maintenance as well as inappropriate material being carried into the school. All devices will be inspected when collected to identify damage and arrange for repair under HCCS's Damage and Loss Protection Plan.

Monitoring Use

Students should be aware that there should be no expectation of privacy when using HCCS network or equipment. When students access the HCCS network at school, HCCS will actively filter access and use third party solutions to monitor content for threats, violence, illegal activity, etc. Notifications are sent to the HCCS Tech Support and Administration regarding suspicious activity. If concerns are identified, disciplinary action and/or parent contact may occur.

Restoring A Device

If technical difficulties occur, the device may need to be reset to factory defaults and the OS reset to the state it was in when it was first checked out to the student. This will be done as a last resort.

In the event that the device needs to be reset, all user-created files stored online (e.g. Google Drive) or on an external miniSD card, USB flash drive will be intact after the operating system is restored. However, all other data (user accounts, music, photos, documents) stored on internal memory that has NOT been synced will not be restored.

Storing Devices

You are responsible for your device at all times. Keep it in a secure place. Do not stack things on top of it. Do not leave it unattended.

Device Damage And Loss Protection

You will assume full responsibility for any costs due to damage, loss, theft, or if the item is not returned to the school at the end of the school year. These costs could be as much as \$200 per incident, regardless of how it happens.

Thank you for reviewing the terms.

Please return your HCCS Technology Check-out Agreement form to agree to the terms.

This document was modeled after the BSD Device Resources web page, found below:
<https://www.beaverton.k12.or.us/departments/future-ready/chromebook-resources>

Agreement for an Electronic Communications System Account
(Nonschool System User)

I have received notice of, read and agree to abide by the provisions adopted and included in the school's electronic communications system policy and administrative regulation. I understand that violation of these provisions may result in suspension and/or revocation of system access and related privileges, and/or referral to law enforcement officials.

In consideration for the privilege of using the school's electronic communications system and in consideration for having access to the public networks, I hereby release the school, its operators and any institutions with which they are affiliated from any and all claims and damages of any nature arising from my use or inability to use the system including, without limitation, the type of damages identified in the school's policy and administrative regulation.

Signature _____ Date _____

Home Address _____

Home Phone Number _____ Cell Number _____

Email Address _____ Date of Birth _____

Parent (Required if nonschool-system user is under 18 years of age)

I have received notice of and read HCCS's Electronic Communications System policy and administrative regulation. I give permission to the school to issue an account for my child and certify that the information contained on this form is correct. I will monitor my child's use of the system and the potential access to the Internet and will accept responsibility for supervision in that regard if and when my child's use is not in a school setting. In consideration for the privilege of using the school's electronic communications system and in consideration for having access to the public networks, I hereby release the school, its operators and any institutions with which they are affiliated from any and all claims and damages of any nature arising from my, or my child's use, or inability to use, the system including, without limitation, the type of damages identified in the school's policy and administrative regulation.

Signature of Parent _____ Date _____

Email Address _____ Home Address _____

Home Phone Number _____ Cell Number _____

Agreement for an Electronic Communications System Account
(Staff System User)

I have received notice of, read and agree to abide by the provisions in the school's electronic communications system policy and administrative regulation. I understand that violation of these provisions may result in suspension and/or revocation of system access and related privileges, and may include discipline, up to and including dismissal, and/or referral to law enforcement officials.

I understand that I may use my personal electronic device (PED) for education related purposes and that certain school proprietary information may be downloaded to, or accessed through my PED. I agree that any school proprietary information downloaded on my PED will only be as necessary to accomplish school purposes, obligations or duties, and will be properly removed from my PED when the use on my PED is no longer authorized. I ensure that the PED in use is owned by me, and I am in complete control of the device at all times.

In consideration for the privilege of using the school's electronic communications system and in consideration for having access to the public networks, I hereby release the school, its operators and any institutions with which they are affiliated from any and all claims and damages of any nature arising from my use or inability to use the system including, without limitation, the type of damages identified in the school's policy and administrative regulation.

Signature _____ Date _____

Email Address _____

Home Phone Number _____ Cell Number _____